

INDEPENDENT CONTRACTOR AGREEMENT

THIS INDEPENDENT CONTRACTOR AGREEMENT (the "Agreement") is entered into as of _____ (the "Effective Date"), by and between:

NetCore LLC (hereinafter referred to as the "Company"), and

_____ (hereinafter referred to as the "Contractor").

WHEREAS, the Company is engaged in providing telecommunications and cable installation services, and wishes to engage the Contractor to perform independent technical and installation services as described herein; and

WHEREAS, the Contractor agrees to perform such services under the terms and conditions set forth in this Agreement.

NOW, THEREFORE, in consideration of the mutual covenants contained herein, the Parties agree as follows:

1. Services to be Performed (Scope of Work)

The Contractor agrees to perform telecommunications, broadband, and cable installation, diagnostic, and maintenance services as requested by the Company. The specific tasks, project routes, and job orders shall be provided to the Contractor on a piece-rate or job-order basis. The Contractor retains the right to accept or refuse any individual work order presented by the Company.

2. Independent Contractor Status

The Parties intend that the Contractor shall operate as an independent contractor, and not as an employee, partner, or agent of the Company. The Contractor is solely responsible for determining the manner, method, and means of performing the services. The Contractor is not required to adhere to any daily shift schedule set by the Company and is free to perform services for other companies, including direct competitors, provided such work does not violate the confidentiality terms herein.

The Contractor acknowledges that they are not eligible for, and shall not participate in, any employee benefit programs, health insurance, paid time off, or workers' compensation coverage provided by the Company.

3. Background Check and Drug Testing Contingency

The continuation and validity of this Agreement are strictly contingent upon the Contractor successfully passing a criminal background check and a drug screening test, both aligned with industry standards and the requirements of the Company's clients or primary contractors. If at any time the Contractor fails to pass, refuses to take, or tampers with a required background check or drug test, this Agreement shall automatically and immediately terminate without requiring prior notice or any penalty, liability, or further obligation from the Company.

4. Compensation, Invoicing, and Payment Hold

The Company shall pay the Contractor based on a piece-rate system (per completed installation/job ticket) as established in the Company's active rate sheet, which is incorporated herein by reference. To receive payment, the Contractor must submit an invoice listing all completed job numbers and routes according to the Company's billing cycle.

The Contractor acknowledges and agrees to a standard three (3) week payment hold (the "Payment Holdout Period") for all initial services rendered. This hold matches the funding cycle of the primary provider/client.

Accordingly, payments for completed work orders shall be disbursed approximately three (3) weeks after the respective invoice is submitted and approved by the Company. In the event of termination of this Agreement by either Party, final settlement and reconciliation for all outstanding approved invoices shall be processed and paid out during this standard billing cycle timeframe.

No federal, state, or local taxes, or social security payments shall be withheld from payments made to the Contractor. The Contractor is solely responsible for all self-employment and income taxes.

5. Tools, Equipment, and Expenses

The Contractor shall provide, at their own expense, all vehicles, fuel, ladders, safety gear, hand tools, meters, and diagnostic equipment necessary to perform the services. The Contractor is responsible for the maintenance, repair, and security of their own tools and equipment. The Company will not reimburse the Contractor for any operational expenses, automotive costs, or mileage incurred during the execution of services.

6. Quality of Work, Negligence, and Remediation

The Contractor warrants that all services shall be performed in a professional, workmanlike manner and in compliance with industry standards, safety protocols, and any applicable specifications. If any work performed by the Contractor is found to be defective, faulty, incomplete, or substandard, or if damage is caused due to the Contractor's negligence, poor workmanship, or reckless behavior, the Contractor shall be solely responsible for all consequences.

The Contractor agrees to correct and remedy any such defective or faulty work at their own expense within twenty-four (24) hours of notification by the Company, without any additional compensation. If the Contractor fails to fix the issue or if the Company is forced to hire a third party to repair the damage or correct the work, the Company reserves the right to deduct all associated repair costs, fines, and expenses directly from any outstanding or future payments owed to the Contractor.

7. Liability and Indemnification

The Contractor assumes full financial and legal responsibility for any actions, omissions, or negligence during the performance of services under this Agreement. The Contractor agrees to indemnify, defend, and hold harmless NetCore LLC, its officers, agents, and employees from and against any and all claims, losses, damages, liabilities, costs, or expenses (including reasonable attorneys' fees) arising out of or resulting from the Contractor's performance of work, including but not limited to damage to customer property, utility line cuts, or personal injury caused by the Contractor.

8. Term and Termination

This Agreement shall commence on the Effective Date and shall remain in effect until terminated. Except as provided in Section 3 (Background Check and Drug Testing Contingency) or in cases of immediate termination for material breach, either Party may terminate this Agreement at any time, with or without cause, by providing _____ days' prior written notice to the other Party.

9. Governing Law

This Agreement shall be construed, interpreted, and governed by the laws of the State of Tennessee, without regard to its conflict of law principles. Any legal disputes arising under this Agreement shall be resolved in the courts located in Davidson County, Tennessee.

10. Entire Agreement

This Agreement, along with any attached rate sheets, constitutes the entire understanding between the Parties regarding the subject matter and supersedes all prior agreements or understandings, written or oral. No modification to this Agreement shall be valid unless executed in writing and signed by authorized representatives of both Parties.

COMPANY:

Company Name: **NetCore LLC**

Date: _____

CONTRACTOR:

Contractor Name (Print):

SSN / EIN:

Business Address:

Date:

Signature: